

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JORGE GARCIA,

Index No.

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, JOHN DOE #1, an employee of the NEW
YORK CITY POLICE DEPARTMENT, JOHN DOE #2, a
employee of the NEW YORK CITY POLICE DEPARTMENT,
and JOHN DOE #3, an employee of the NEW YORK CITY
POLICE DEPARTMENT

Defendants.
-----X

**NOTICE OF COMMENCEMENT OF ACTION
SUBJECT TO MANDATORY ELECTRONIC FILING**

PLEASE TAKE NOTICE that the matter captioned above, which has been commenced by filing of the accompanying documents with the County Clerk, is subject to mandatory electronic filing pursuant to Section 202.5-bb of the Uniform Rules for the Trial Courts. This notice is being served as required by Subdivision (b) (3) of that Section.

The New York State Courts Electronic Filing System ("NYSCEF") is designed for the electronic filing of documents with the County Clerk and the court and for the electronic service of those documents, court documents, and court notices upon counsel and self-represented parties. Counsel and/or parties who do not notify the court of a claimed exemption (see below) as required by Section 202.5-bb(e) must immediately record their representation within the e-filed matter on the Consent page in NYSCEF. Failure to do so may result in an inability to receive electronic notice of document filings.

Exemptions from mandatory e-filing are limited to: 1) attorneys who certify in good faith that they lack the computer equipment and (along with all employees) the requisite knowledge to comply; and 2) self-represented parties who choose not to participate in e-filing. For additional information about electronic filing, including access to Section 202.5-bb, consult the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center at 646-386-3033 or efile@couns.state.ny.us.

Dated: New York, New York
October 22, 2018

Michael A. Rose
HACH & ROSE, LLP
Attorney for Plaintiffs
112 Madison Avenue, 10th Floor
New York, New York 10016
T.212.779.0057 | F.212.779.0028

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

JORGE GARCIA,

Index:

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, JOHN DOE #1, an employee of the NEW
YORK CITY POLICE DEPARTMENT, JOHN DOE #2,
an employee of the NEW YORK CITY POLICE
DEPARTMENT, and JOHN DOE #3, and employee of the
NEW YORK CITY POLICE DEPARTMENT,

Defendants.

Basis of Venue:

Place of occurrence

-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 22, 2018

Yours, etc.



Anthony Hirschberger, Esq.

HACH & ROSE, LLP

Attorneys for Plaintiff

JORGE GARCIA

112 Madison Avenue, 10th Floor

New York, NY 10016

T. 212.779.0057 | 212.779.0028

To: THE CITY OF NEW YORK,
1 Centre Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT,
1 Centre Street
New York, NY 10007

JOHN DOE #1, an employee of the
NEW YORK CITY POLICE DEPARTMENT,
1 Centre Street
New York, NY 10007

JOHN DOE #2, an employee of the
NEW YORK CITY POLICE DEPARTMENT,
1 Centre Street
New York, NY 10007

JOHN DOE #3, and employee of the
NEW YORK CITY POLICE DEPARTMENT
1 Centre Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JORGE GARCIA,

Index No.

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, JOHN DOE #1, an employee of the
NEW YORK CITY POLICE DEPARTMENT, JOHN DOE #2,
an employee of the NEW YORK CITY POLICE DEPARTMENT,
and JOHN DOE #3, and employee of the NEW YORK CITY
POLICE DEPARTMENT,

Defendants,

-----X

Plaintiff, by his attorneys, HACH & ROSE, LLP, complaining of the defendant(s) herein,
respectfully shows to this Court, and allege as follows:

THE PARTIES

1. On or about March 16, 2018, and at all times herein mentioned, the Plaintiff, JORGE GARCIA was and still is a resident of the County of Kings, State of New York;
2. That on March 16, 2018 and at all times mentioned, Defendant, THE CITY OF NEW YORK, was and still is a domestic municipal corporation;
3. At all times relevant hereto, defendant THE CITY OF NEW YORK is a municipality of the State of New York and owns, operates, manages, directs and controls the New York City Police Department.
4. At all times mentioned, herein Defendant THE CITY OF NEW YORK operated, maintained, managed and controlled THE NEW YORK CITY POLICE DEPARTMENT("NYPD") and was responsible for the hiring, training, supervision, discipline, retention and promotion of the police officers, sergeants, lieutenants and/or employees of the NYPD.
5. On or about March 16, 2018 and at all times herein mentioned, defendant JOHN DOE #1, was and is and continues to be employed by defendant NYPD.

6. On or about March 16, 2018 and at all times herein mentioned, defendant JOHN DOE #2, was and is and continues to be employed by defendant NYPD.
7. On or about March 16, 2018 and at all times herein mentioned, defendant JOHN DOE #3, was and is and continues to be employed by defendant NYPD.
8. This action is brought to recover compensatory damages against defendants, THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT (NYPD), and compensatory damages as well as punitive damages against the defendants, JOHN DOE #1, an employee of the NYPD, JOHN DOE #2, an employee of the NYPD, and JOHN DOE #3, for committing acts under the color of law which deprived the plaintiff JORGE GARCIA of rights secured by the Constitution and laws of the United States and State of New York and for assault, battery, and personal injury.
9. At all times mentioned in this Complaint and continuing to date the plaintiff was and continues to be a resident of the county of Kings, State of New York.
10. This action falls within one or more of the exceptions set forth in CPLR Section 1602;
11. The cause of action herein arose in the County of Kings, State of New York;

NOTICE OF CLAIM

12. That plaintiff served a verified Notice of Claim setting forth the time when, the place where, and the manner in which the claim arose, upon the defendants as required by General Municipal Law §50 on or about June 12, 2018.
13. Plaintiff submitted to a General Municipal Law §50-h hearing on August 10, 2018.
14. That at least thirty (30) days have elapsed prior to the commencement of this action since the said service of the Notice of Claim as aforesaid and payment thereof has been neglected and/or refused by the defendants.
15. That this action is being commenced within one year and ninety days after the occurrence herein.

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF**

16. At all times mentioned in this complaint the defendant, JOHN DOE #1, was and continues to be employed by NEW YORK CITY POLICE DEPARTMENT as a Police Officer assigned to its Police Department. He is being sued in both his individual and official capacities as a NYPD Police Officer.
17. At all times mentioned in this complaint the defendant, JOHN DOE #2, was and continues to be employed by NEW YORK CITY POLICE DEPARTMENT as a Police Officer assigned to its Police Department. He is being sued in both his individual and official capacities as a NYPD Police Officer.
18. At all times mentioned in this complaint the defendant JOHN DOE #3, was and continues to be employed by NEW YORK CITY POLICE DEPARTMENT as a Police Officer assigned to its Police Department. He is being sued in both his individual and official capacities as a NYPD Police Officer.
19. Upon information and belief the defendant, NEW YORK CITY POLICE DEPARTMENT was negligent in the hiring, continued employment of, disciplining and supervising of its defendant Police Office and Police Department.
20. Upon information and belief at all times and places hereinafter mentioned the defendants, JOHN DOE #1 an employee of the NYPD, JOHN DOE #2, an employee of the NYPD, and JOHN DOE #3, an employee of the NYPD, acted individually and/or collectively under color of law, to wit, the New York State Constitution and Statues as well as the rules, regulations, policies, customs and usage of the NEW YORK CITY POLICE DEPARTMENT.
21. At all times mentioned in this complaint, the defendants, separately and in concert, engaged in acts and omissions which caused the deprivation of the plaintiff JORGE GARCIA's constitutional rights, privileges and immunities and while these acts were carried out under color of law, they had no justification or excuse in law and were instead gratuitous, illegal, improper and unrelated to any

activity which law enforcement officers may approximately and legally perform while in the course of protecting persons and property or ensuring civil orders.

22. The concerted actions of the defendants, JOHN DOE #1 an employee of the NYPD, JOHN DOE #2 an employee of the NYPD, and JOHN DOE #3 an employee of the NYPD, allowed an unlawful assault and battery upon the plaintiff, JORGE GARCIA; as well as, an abuse of process. Their actions were negligent, including negligent cuffing and undue force, reckless, unreasonable and unauthorized, as well as were carried out with utter disregards for the safety of residents of New York citizens.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF**

23. The plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 22 of their Complaint with the same force and effect and though fully set forth herein.
24. The plaintiff JORGE GARCIA's rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. §1983 in that the plaintiff JORGE GARCIA was subjected to excessive and unreasonable force by the defendants.
25. The concerted actions of the defendants caused and resulted in the use of excessive force against the Plaintiff, JORGE GARCIA which constituted unreasonable and excessive force by police officers as well as an abuse process. Such actions were negligent, reckless, unreasonable and unauthorized, as Defendants had a duty to not subject Plaintiff to vicious police actions and failed to prevent same and thus breached their duty.
26. As a consequence of the Defendant Police Officer's wrongful actions, negligent behavior and violation of state and federal laws, the Plaintiff, JORGE GARCIA was seriously maimed, physically injured, subjected to great fear, terror and personal humiliation, mental anguish and degradation and suffered severe physical pain, scarring disfigurement and physical impairment, as

well as, mental and emotional distress and continues to suffer from said physical injuries and conditions.

27. By reason of the foregoing, the plaintiff JORGE GARCIA has been damaged in an amount to be determined by the trier of fact, together with such punitive damages, costs and fees as may be deemed just and proper by the Court.

**AS AND FOR A THIRD CAUSE OF ACTION
42 U.S.C. § 1983- Municipal Violations**

28. The Plaintiff repeats, reiterate and reallege each and every allegation contained in Paragraphs 1 through 27 of their Complaint with the same force and effect as though fully set forth herein.
29. Prior to March 16, 2018 and since, the defendants, CITY OF NEW YORK and NEW YORK CITY TRANSIT AUTHORITY have permitted and tolerated a pattern and practice of unjustified, unreasonable and illegal use of force against civilians by Police Officers of their Police Departments. Although such illegal uses of force were improper, the officer involved were not prosecuted, disciplined or subjected to restraint, and such incidents were in fact covered up with official claims that the use of a excessive force was justified and proper. As a result, Police Officers of the defendants, CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT, were caused and encouraged to believe that civilians could be abused under such circumstances which did not require the use of vicious excessive force, and that such described use of force would in fact be permitted by the defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENTS.
30. In addition to permitting a pattern and practice of improper abuses of civilians, the defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT have failed to maintain a proper system for investigation of all incidents of excessive force by its police officers, despite Plaintiff's General Municipal Law hearings and transcripts, no investigation was conducted by Defendants.

31. The defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT have maintained no system of review of the continued unjustified excessive use of force by its Police Officers nor to date has defendants' identified the improper conduct by its Police Officers and failed to impose upon its Police Officers who used the aforementioned excessive and illegal force upon individuals and other wrongful actions by its Police Officers.
32. Upon information and belief, specific flaws in the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT brutality review process include, but are not limited to, the following:
- a. Unlawful preparation of reports regarding investigations of excessive force claims, as routine, with point-by-point justifications of the police officer's actions, regardless of whether such actions are legal;
 - b. Police Department investigations of excessive force claims systematically fail to credit testimony by non-police officer witnesses and uncritically rely on reports by Police Officers involved in the incident;
 - c. Police Department investigation of excessive force claims fail to include in their reports relevant factual information which would tend to contradict the statements of the Police Officers involved in the incident;
 - d. Supervisory Police Officers at the times issue public statements exonerating Police Officer for excessive use of force before the investigation of the incident by the police department has been completed;
 - e. Reports of excessive force are not reviewed for accuracy by supervisory officers. Conclusions are frequently permitted to be drawn on the basis of clearly incorrect or contradictory information; and,
 - f. The Defendants continue to fail to report excessive force complaints made by the citizens of New York for prosecution to a "Grand Jury".

33. The defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT have failed to properly and adequately instruct, train and supervise its Police Department with respect to the force permitted to be used in effecting arrests.
34. The foregoing acts, omissions, systematic flaws, policies and customs of the defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT caused Police Officers of its police departments to believe that excessive and illegal force and other improper actions would not be aggressively, honestly and properly investigated with the foreseeable result that officers would most likely use excessive force in situations where such force is neither necessary nor reasonable.
35. By permitting and assisting such a pattern of police misconduct, the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT have acted under the color of custom and policy to condone, encourage and promote the deprivation of plaintiff JORGE GARCIA's rights as guaranteed under 42 U.S.C. §§ 1983 and 1985 as well as under the Fourth, Fifth, and Fourteenth Amendments of U.S. Constitution; to wit, the Defendant Police Officers were encouraged by the defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT to believe that their actions against the Plaintiff would be accepted with impunity, just as such actions have been so accepted to date.
36. As a consequence of the defendants' CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT systematic practice, pattern and custom of intentionally promoting and supporting its Police Officers' violations of 42 U.S.C. §§ 1983 and 1985, the plaintiff, JORGE GARCIA was deprived of her Constitutional rights to freedom against excessive, unwarranted and abusive police actions. Plaintiff has been damaged physically, and mentally to the extent of which he suffered permanent injuries to head, neck, limbs, chest, and other injuries that are presently unknown;
37. The Defendant Police Officers and Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT had a duty under 42 U.S.C. §§ 1983 and 1985, as well as a duty to investigate, supervise, and discipline the Defendant Police Officers and prevent other wrongful acts that were committed against the Plaintiff, JORGE GARCIA.

38. By reason of the forgoing, the Plaintiff, JORGE GARCIA has been damaged in an amount to be determined by trier of fact, together with such punitive damages, costs and fees as may be deemed just and proper by the Court.

**AS AND FOR A FOURTH CAUSE OF ACTION
42 U.S.C. §1985**

39. The Plaintiff repeats, reiterate and realleges each and every allegation contained in paragraphs 1 through 38 of their Complaint with the same force and effects as though fully set forth herein.

40. The Defendant Police Officers and the defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT conspired to deprive the Plaintiff JORGE GARCIA of her rights and jointly caused deprivation of such rights by acting in concert by subjecting him to excessive and illegal force.

41. The Defendant Police Officers and the defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, knowingly acted in concert with one another to subject plaintiff JORGE GARCIA to unnecessary, excessive and vicious police force.

42. Each and every one of the Defendant Police Officers has complicity in the physical acts perpetrated upon the person of JORGE GARCIA or failed to timely intervene in order to prevent injury.

43. Each of the Defendant Police Officers, separately and in concert, acted outside the scope of his jurisdiction and without authorization of law and each of them separately and in concert acted willfully, knowingly, and purposefully with the specific intent to deny the Plaintiff JORGE GARCIA or his constitutional rights and therefore conspired to harm him.

44. The actions by Defendant Police Officers further denied the Plaintiff JORGE GARCIA his right to due process and denied her the equal protection under the law. These rights are guaranteed to the Plaintiff JORGE GARCIA by U.S.C. §§ 1983 and 1985, and the Fifth Amendments to the United States Constitution.

45. By reason of the foregoing the Plaintiff JORGE GARCIA has been damaged in an amount to be determined by the trier of fact, together with such punitive damages, costs and fees as may be deemed just and proper by the Court.

**AS AND FOR A FIFTH CAUSE OF ACTION
BATTERY**

46. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 45 of this complaint with the same force and effect as though fully set forth herein.

47. The Defendant Police Officers' concerted actions were grossly negligent, recklessly indifferent and shocking to the conscience in their purposeful and intentional violation of their duty of care towards the Plaintiff, JORGE GARCIA.

48. As a result of the Plaintiff, JORGE GARCIA, suffered physical injuries and mental and emotional trauma, loss of income, loss of future employment opportunities, disfigurement, scarring and restriction of movement and was thus deprived of his civil rights as protected by the United States Constitution, applicable Federal statutes, and laws of the State of New York.

49. By reason of the foregoing, the Plaintiff JORGE GARCIA has been damaged in an amount to be determined by the tier of fact, together with such punitive damages, costs and fees as may be deemed just and proper by the Court.

**AS AND FOR A SIXTH CAUSE OF ACTION
BATTERY**

50. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 49 of this complaint with the same force and effect as though fully set forth herein.

51. The defendants, JOHN DOE #1, an employee of the NYPD, JOHN DOE #2, an employee of the NYPD, and JOHN DOE #3, an employee of the NYPD, made unauthorized and outrageous physical contact with the person of the plaintiff, JORGE GARCIA, during the assault.

52. By reason of the foregoing the defendants, JOHN DOE #1, an employee of the NYPD, JOHN DOE #2, an employee of the NYPD, and JOHN DOE #3, an employee of the NYPD committed a battery against the plaintiff JORGE GARCIA.

53. As a result of the defendant Police Officers' battery the plaintiff JORGE GARCIA sustained personal injuries, and mental injuries which required future medical attention all to his damage.

54. By reason of the foregoing the plaintiff JORGE GARCIA has been damaged in an amount to be determined by triers of fact together with such punitive damages costs and fees as may be determined just and proper by the Court.

WHEREFORE the Plaintiff demands judgment on all causes of action against the Defendants in amounts in excess of the monetary jurisdiction of all Lower Courts, together with costs and fees as may be deemed just and proper by the Court and demand the following damages:

- a. Compensatory damages;
- b. Punitive damages;
- c. Attorney's fees and the costs of this action pursuant to 42 §§ 1983; and
- d. Such other and further relief as this Court may deemed appropriate.

Dated: New York, New York
October 22, 2018

Yours, etc.,



Anthony Hirschberger, Esq.

HACH & ROSE, LLP

Attorney for Plaintiff

JORGE GARCIA

112 Madison Avenue, 10th Floor

New York, New York 10016

T.212.779.0057

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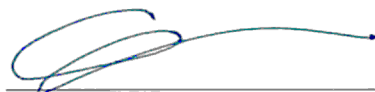
STATE OF NEW YORK }
 } ss.
COUNTY OF NEW YORK }

Anthony Hirschberger, being duly sworn, deposes and says:

That deponent is a member with HACH & ROSE, L.L.P., attorneys for Plaintiff, in the within action; that the deponent has read the foregoing **SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponents knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters deponent believes it to be true and the reasons that this verification is not made by the Plaintiff and is made by deponent is that Plaintiff(does/do not reside in the county where the attorney for the Plaintiff have their office.

Deponent further says that the source of deponent's information and the grounds of deponent's beliefs as to all matters not stated upon deponent's knowledge are from investigation made on behalf of Plaintiff.

DATED: NEW YORK, NEW YORK
 October 22, 2018



Anthony Hirschberger, Esq.
HACH & ROSE, LLP
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(212) 779-0057